

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 6

Honorable Rafael Sivilla-Jones, Presiding

191 North First Street, San Jose, CA 95113

Telephone: (408) 882-2160

July 2, 2026

9:00 and 9:01 A.M.

RECORDING COURT PROCEEDINGS IS PROHIBITED

ORAL ARGUMENT

Before 4:00 PM today you must notify the:

- (1) Court by calling (408) 808-6856 and
- (2) Other side by phone or email that you will appear at the hearing to contest the tentative

If you fail to so notify the court or opposing side, the Court will not hear argument, and the tentative ruling will be adopted. (California Rule of Court 3.1308(a)(1) and Local Rule 8.E.)

REMOTE APPEARANCES

Phone only appearances are PROHIBITED. In-person appearances are preferred.

For necessary virtual appearances, you **must use video** and follow **Civil Local Rule 5.**

To access the courtroom, click or copy and paste this link into your internet browser and scroll to

Department 6: <https://santaclara.courts.ca.gov/online-services/remote-hearings>

LINE	CASE NO.	CASE TITLE	TENTATIVE RULING
9:00 1	19CV357918	Bank of America vs. Sunshine Roybal	Defendant moves this court to set aside default judgment claiming improper service. Default judgment was entered 18 years ago. Defendant's motion is not timely. Motion is DENIED.
9:00 2	24CV453375	Wells Fargo Bank vs. Mahan	Plaintiff moves this court to enter a judgment against defendant. Defendant filed no objection to Plaintiff's motion. Plaintiff and defendant entered into a valid contract, Plaintiff performed the contract by extending credit to the defendant, the defendant breached that contract by not paying, and Plaintiff suffered damages as a result. Plaintiff's motion is GRANTED.
9:00 3	25CV462132	Silviera, et.al. v. Khan, et.al.	Plaintiff moves this court for leave to file an amended complaint. Defendant filed no opposition to Plaintiff's motion. Plaintiff's motion is GRANTED.
9:00 4	25CV467505	Avatar Singh vs. America Honda Motor Company	Plaintiff petitions this court to compel further production of documents from Defendant. This court finds that RFP No. 7 is relevant and has been provided by defendant. This court finds that RFP No. 16 is also relevant and orders defendant to produce documents. This court finds that RFP No. 17-26 requesting ESI regarding electrical and body defects is relevant and orders Defendant to provide such documents. This court finds that RFP No. 43-45 are overbroad and Plaintiffs request is denied. This court finds that RFP No. 46-47 related to call center scripts for customer service agents regarding electrical or defect of subject vehicle is relevant. This court finds that RFP No. 53 for customer service organizational charts is overbroad. This court finds that RFP No., 75 asking for documents related to technical service bulletin is relevant. This court therefore GRANTS Plaintiff's petition to compel for RFP No. 16, 17-16, 46-47, and 75. This court DENIES Plaintiff's petition to compel RFP No. 7, 43-45, and 53.
9:00 5-6	25CV483263	Bank of America vs. Juniel	See below.
9:00 7	25CV470890	Midland Credit Management vs. Fitch	Defendant moves this court to quash service of Plaintiff's complaint. Plaintiff was served through substitute service at his house. Plaintiff made several attempts to serve Defendant personally. Defendant filed statement with several witnesses indicating no one was at home. Defendant's evidence is insufficient to rebut the presumption of valid service. Defendant's motion is DENIED.
9:01 1	19CV344261	George Veloria et.al. vs Ferdinand Adona	Plaintiff moves this court for relief from court's dismissal of case without prejudice. Plaintiff's case was dismissed when both parties failed to appear at last court proceeding. Plaintiff's attorney explained the problem as a mistake or inadvertence as he never received notice of date. Plaintiff's motion is GRANTED.
9:00 2-3	25CV457721	Geovanni Chisolm vs. Ken Nguyen	Both minors Geovanni Chisolm and Noelani Bluehorse compromise claims are APPROVED.
9:01 4	25CV462132	Eugene Silveria Trustee vs. Khan, Mo et.al.	Defendant Khan's attorney moves this court to allow him to be relieved as counsel. Defendant's attorney's motion to withdraw is GRANTED.

Calendar Line 6

Case Name: Bank of America, N.A. v. Christopher Juniel

Case No.: 25CV483263

This action arises from the breach of a Credit Card Agreement (Agreement). Plaintiff Bank of America, N.A. (Plaintiff) alleges Defendant Christopher Juniel (Defendant) defaulted on the Agreement by failing to make timely payments. “Because the Defendant was in default under the Agreement, Plaintiff declared Defendant’s entire account balance of \$8861.67 immediately due and payable. Defendant continues to fail to pay Plaintiff for all amounts due.” (Complaint at p. 3.) Plaintiff sues Defendant for breach of contract.

Defendant moves to compel arbitration of this action based on an arbitration provision he contends is in the Credit Card Agreement. Plaintiff has not opposed this motion. Having reviewed the arbitration provision, the court grants the motion and stays this action pending the outcome of arbitration.

LEGAL STANDARD

The arbitration provision states, “[t]he arbitration of any matter involves interstate commerce and is governed by the Federal Arbitration Act, 9 U.S.C. §§ 1 et seq. (the ‘FAA’).” Under the FAA, the court’s role is limited to determining “(1) whether a valid agreement to arbitrate exists, and if it does (2) whether the agreement encompasses the dispute at issue.” (*Chiron Corp. v. Ortho Diagnostic Systems, Inc.* (9th Cir. 2000) 207 F.3d 1126, 1130.) To determine “whether a valid contract to arbitrate exists,” courts apply “ordinary state law principles that govern contract formation.” (*Davis v. Nordstrom, Inc.* (9th Cir. 2014) 755 F.3d 1089, 1093 [citations omitted]; *Ingle v. Circuit City Stores, Inc.* (9th Cir. 2003) 328 F.3d 1165, 1170.)

Code of Civil Procedure section 1281.2 provides: “On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate such controversy, the court shall order the petitioner and respondent to arbitrate the controversy if it determines that an agreement to arbitrate the

controversy exists, unless it determines that: [¶] The right to compel arbitration has been waived by the petitioner; or [¶] (b) Grounds exist for rescission of the agreement.”

In determining the threshold question of whether an arbitration agreement exists between the parties, the court employs a three-step burden shifting analysis. (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 755 (*Iyere*); *Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1060.) The party seeking to compel arbitration bears the initial burden of showing an agreement to arbitrate. If that burden is met, the burden shifts to the opposing party to show a factual dispute regarding the agreement’s existence. If the opposing party does so, then the burden shifts back to the proponent of arbitration to show the existence of a valid agreement by a preponderance of the evidence. (*Iyere, supra*, 87 Cal.App.5th at p. 755.)

ANALYSIS

Defendant has shown the existence of a valid agreement to arbitrate. “The moving party ‘can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party’s] signature. Alternatively, the moving party can meet its burden by setting forth the agreement’s provisions in the motion.’ ” (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165, internal citations and quotations omitted.) Here, Defendant has set forth the arbitration provisions verbatim at the end of his motion. He is not required to do more. “For purposes of a petition to compel arbitration, it is not necessary to follow the normal procedures of authentication.” (*Gamboa, supra*, 72 Cal.App.5th at pp. 165-166.) Additionally, while in California there must be a “written agreement” to arbitrate, the written agreement need not be signed. (*Banner Entertainment v. Superior Court* (1988) 62 Cal.App.4th 348, 361 [noting that “it is not the presence or absence of evidence of a signature which is dispositive; it is the presence or absence of evidence of an agreement to arbitrate which matters.”]) Thus, the lack of signature is not dispositive because Plaintiff has shown a written agreement exists.

The arbitration provision applies to Plaintiff’s claims because it states “[t]his section on arbitration applies to accounts[.]” It should be noted, however, that the Credit Card Agreement attached to Plaintiff’s complaint does not include an arbitration provision like the one copied in

Defendant's moving papers. Defendant indicates that the entire Agreement can be found at <https://www.bankofamerica.com>; however, this is a link to the Bank of America website and not a link specific to the Agreement. Nevertheless, Plaintiff has not opposed this motion to challenge the arbitration agreement's existence or authenticity. Instead, Defendant has met his prima facie burden of proving the existence of an arbitration agreement as well as its application to this case. In any event, the failure to timely file an opposition is a basis for the Court to grant the motion, as the Court may construe such non-opposition as a concession that the motion is meritorious. (See *D.I. Chadbourne, Inc. v. Super. Court* (1964) 60 Cal.2d 723, 728, fn. 4; see also Cal. Rule of Court 8.54, subd. (c) ["A failure to oppose a motion may be deemed consent to the granting of the motion."].)

For these reasons, the motion to compel arbitration is GRANTED. A stay of these proceedings is proper under Code of Civil Procedure § 1281.4 and 9 U.S.C. § 3. The Court STAYS this action in its entirety pending the outcome of arbitration. The demurrer to the cross-complaint is MOOT as a result of this decision.

CONCLUSION

The motion to compel is GRANTED. This action is STAYED in its entirety pending the outcome of arbitration. The demurrer to the cross-complaint is MOOT.

The Court will prepare the order.